

HOUSE BILL No. 1208

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-42-4-11; IC 35-44.1-3-1.5.

Synopsis: Offender against children residency restrictions. Provides that an offender against children who: (1) is required to register as a sex offender for life; and (2) knowingly or intentionally resides within 500 feet of certain areas owned, maintained, and governed by a homeowners association or property owners association; commits a sex offender residency offense, a Level 6 felony. Establishes the crime of interference with law enforcement, a Class B misdemeanor.

Effective: July 1, 2026.

Olthoff

January 5, 2026, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1208

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 35-42-4-11, AS AMENDED BY P.L.142-2020,
2 SECTION 66, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 11. (a) As used in this section, and except as
4 provided in subsection (d), "offender against children" means a person
5 required to register as a sex or violent offender under IC 11-8-8 who
6 has been:

7 (1) found to be a sexually violent predator under IC 35-38-1-7.5;

8 or

9 (2) convicted of one (1) or more of the following offenses:

10 (A) Child molesting (IC 35-42-4-3).

11 (B) Child exploitation (IC 35-42-4-4(b) or IC 35-42-4-4(c)).

12 (C) Child solicitation (IC 35-42-4-6).

13 (D) Child seduction (IC 35-42-4-7).

14 (E) Kidnapping (IC 35-42-3-2), if the victim is less than
15 eighteen (18) years of age, and the person is not the child's
16 parent or guardian.

17 A person is an offender against children by operation of law if the



1 person meets the conditions described in subdivision (1) or (2) at any
2 time.

3 (b) As used in this section, "reside" means to spend more than three
4 (3) nights in:

5 (1) a residence; or

6 (2) if the person does not reside in a residence, a particular
7 location;

8 in any thirty (30) day period.

9 (c) An offender against children who knowingly or intentionally:

10 (1) resides within one thousand (1,000) feet of:

11 (A) school property, not including property of an institution
12 providing post-secondary education;

13 (B) a youth program center;

14 (C) a public park; or

15 (D) a day care center licensed under IC 12-17.2;

16 (2) establishes a residence within one (1) mile of the residence of
17 the victim of the offender's sex offense; or

18 (3) resides in a residence where a child care provider (as defined
19 by IC 31-33-26-1) provides child care services;

20 commits a sex offender residency offense, a Level 6 felony.

21 (d) This subsection does not apply to an offender against children
22 who has two (2) or more unrelated convictions for an offense described
23 in subsection (a). A person who is an offender against children may
24 petition the court to consider whether the person should no longer be
25 considered an offender against children. The person may file a petition
26 under this subsection not earlier than ten (10) years after the person is
27 released from incarceration or parole, whichever occurs last (or, if the
28 person is not incarcerated, not earlier than ten (10) years after the
29 person is released from probation). A person may file a petition under
30 this subsection not more than one (1) time per year. A court may
31 dismiss a petition filed under this subsection or conduct a hearing to
32 determine if the person should no longer be considered an offender
33 against children. If the court conducts a hearing, the court shall appoint
34 two (2) psychologists or psychiatrists who have expertise in criminal
35 behavioral disorders to evaluate the person and testify at the hearing.
36 After conducting the hearing and considering the testimony of the two
37 (2) psychologists or psychiatrists, the court shall determine whether the
38 person should no longer be considered an offender against children. If
39 a court finds that the person should no longer be considered an offender
40 against children, the court shall send notice to the department of
41 correction that the person is no longer considered an offender against
42 children.



1 (e) Except as provided in subsection (f), this subsection applies
2 to an offender against children who is required to register for life
3 under IC 11-8-8-19(b) through IC 11-8-8-19(e). An offender
4 against children who knowingly or intentionally resides within five
5 hundred (500) feet of a:

- 6 (1) ballfield;
7 (2) playground containing a swing, slide, or climbing
8 structure;
9 (3) swimming pool; or
10 (4) beach;

11 owned, maintained, and governed by a homeowners association (as
12 defined in IC 32-25.5-2-4) or property owners association commits
13 a sex offender residency offense, a Level 6 felony.

14 (f) Subsection (e) does not apply to an offender against children
15 who has established a residence within five hundred (500) feet of
16 an area described in subsection (e)(1) through (e)(4) before July 1,
17 2026, and has continuously resided at that residence.

18 SECTION 2. IC 35-44.1-3-1.5, IS ADDED TO THE INDIANA
19 CODE AS A NEW SECTION TO READ AS FOLLOWS
20 [EFFECTIVE JULY 1, 2026]: Sec. 1.5. (a) For purposes of this
21 section, "interferes" includes a nonviolent act of passive resistance
22 or a failure to act.

23 (b) A person who, with the intent to impede, hinder, or delay an
24 arrest, interferes with a law enforcement officer or a person
25 assisting the officer while the officer is lawfully engaging in the
26 execution of the officer's duties commits interference with law
27 enforcement, a Class B misdemeanor.

